

21STCV10298 21STCV10298

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-11

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APPLICATION TO BE

ADMITTED PRO HAC VICE

Application filed July 6, 2026.

MOVING PARTY: Plaintiffs Kenneth Lawson and Monique

Jourdain-Lawson

RESPONDING PARTY: N/A

NOTICE: OK.

RELIEF REQUESTED: Admission of James D. Montgomery, Jr.,

Esq. to appear as counsel pro hac vice.

RULING: Granted.

BACKGROUND/DISCUSSION

On July 6, 2026, Plaintiffs Kenneth Lawson and Monique

Jourdain-Lawson filed an application to admit James D. Montgomery, Jr., Esq. to

appear pro hac vice in this action. On July 29, 2026, the Court continued the

hearing because the proof of service did not comply with California Rules of Court, rule 9.40, subdivision (c)(1). The Court directed Plaintiffs to serve the application and notice of continued hearing on all appearing parties and the State Bar and file a signed proof of service. On July 29, 2026, Plaintiffs filed a renewed application and proof of service.

A non-licensee of the State Bar may appear as counsel pro hac vice in the Court's discretion. (Cal. Rules of Court, rule 9.40, subd. (a).) An active State Bar licensee must be associated as attorney of record. (Ibid.) The applicant must file a verified application together with proof of service by mail of the application and notice of hearing on all appearing parties and on the State Bar at its San Francisco office. (Id., subd. (c)(1).) The application must contain the information required by subdivision (d). (Id., subd. (d).) The applicant must pay the application fee set by the State Bar. (Id., subd. (e).)

Here, Montgomery resides in Illinois, maintains his office in Illinois, and states that he is not a California resident and does not regularly engage in practice or other business in California. (Montgomery Decl., ¶ 2.) He has been admitted to practice before the Supreme Court of Illinois since November 1, 1982, is a member in good standing, and has never been suspended or disbarred. (Id., ¶¶ 3-4.) He has not filed an application to appear pro hac vice in California during the preceding two years. (Id., ¶ 5.) California attorney John C. Allen IV is associated as attorney of record. (Id., ¶ 6; Allen Decl., ¶¶ 1, 3.) Montgomery agrees to comply with the California Rules of Professional Conduct and consents to the jurisdiction of California courts and disciplinary authorities. (Montgomery Decl., ¶ 7.)

The deficiencies identified at the prior hearing have been substantially cured. The renewed proof of service is signed and identifies the appearing parties and the State Bar at its San Francisco office as recipients. (Proof of Service, pp. 3-4.) Allen declares that the application and proposed order were delivered to the State Bar with payment of the required \$50 application fee. (Allen Decl., ¶ 4.) Under these circumstances, the Court finds that the renewed filing substantially complies with rule 9.40 and cures the deficiencies identified at the prior hearing.

CONCLUSION

The application to admit James D. Montgomery, Jr., Esq. to

appear as counsel pro hac vice is GRANTED.

Dept. F-46

Hearing Date: September 11, 2026

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PLAINTIFFS' MOTION FOR PRE-TRIAL DISCOVERY OF DEFENDANT'S
FINANCIAL CONDITION PURSUANT TO CIVIL CODE SECTION 3295(c)

Motion filed on June 15, 2026.

MOVING PARTY: Kenneth Lawson and Monique Jourdain-Lawson
(Plaintiffs)

RESPONDING PARTY: Cash McElroy Jones (Jones), 5th Amendment
Management Corp., and 5th Amendment Entertainment, Inc. (collectively,
Defendants)

NOTICE: OK.

RELIEF REQUESTED: Plaintiffs seek an order permitting
pretrial discovery of Jones's financial condition pursuant to Civil Code
section 3295, subdivision (c).

RULING: Denied.

BACKGROUND

On September 1, 2021, Plaintiffs filed the First Amended
Complaint. On June 15, 2026, Plaintiffs filed the present Motion for Pre-Trial
Discovery of Defendant's Financial Condition. On August 20, 2026, the parties
filed a Joint Trial Setting Conference Statement. On August 28, 2026,
Defendants filed an Opposition supported by the declarations of Jones and
Justin R. Trauben. No reply was filed.

DISCUSSION

Code of Civil Procedure section 2024.050, subdivision (a),

provides that “[o]n motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set.” In exercising its discretion, the Court considers the necessity and reasons for the discovery, the requesting party’s diligence and reasons the discovery was not completed earlier, any effect on the trial calendar or prejudice to another party, and the time between the former and present trial dates. (Code Civ. Proc., § 2024.050, subd. (b).)

Civil Code section 3295, subdivision (c), provides that no pretrial discovery by a plaintiff into the financial condition of the defendant shall be permitted unless the Court enters an order permitting such discovery. “Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail” on a claim for punitive damages. (Ibid.)

“[B]efore a court may enter an order permitting discovery of a defendant’s financial condition, it must (1) weigh the evidence submitted in favor of and in opposition to motion for discovery, and (2) make a finding that it is very likely the plaintiff will prevail on his claim for punitive damages.” (Jabro v. Superior Court (2002) 95 Cal.App.4th 754, 758.) “In this context, we interpret the words ‘substantial probability’ to mean ‘very likely’ or ‘a strong likelihood’ just as their plain meaning suggests.” (Ibid.) It is not sufficient for a plaintiff to merely make a prima facie showing such as would avoid summary judgment. (Id. at p. 759.)

Here, the Court’s July 9, 2026 order directed the parties to identify any fact discovery they sought to reopen, the reasons supporting reopening, and whether limited reopening would suffice. The Court ordered that discovery remain closed unless otherwise ordered. (Trauben Decl., Ex. 7.) Plaintiffs thereafter requested reopening for three witness depositions and discovery of Jones’s financial condition. (Joint TSC Statement, ¶ 19.) The Court addresses here only the request for financial-condition discovery. The parties’ remaining discovery requests are addressed separately at the Trial Setting Conference.

Here, the Court's July 9, 2026 order directed the parties to identify any fact discovery they sought to reopen, the reasons for reopening, and whether limited reopening would suffice. The Court ordered discovery to remain closed unless otherwise ordered. (Trauben Decl., Ex. 7.) Plaintiffs thereafter requested reopening for three witness depositions and discovery of Jones's financial condition. (Joint TSC Statement, ¶ 19.) The Court addresses here only whether fact discovery should be reopened to permit pretrial discovery of Jones's financial condition. The parties' remaining discovery requests are addressed separately at the Trial Setting Conference.

The factors under Code of Civil Procedure section 2024.050, subdivision (b), weigh against reopening fact discovery to permit pretrial discovery of Jones's financial condition.

As to necessity, Plaintiffs contend that Jones's financial information is important to presentation of their punitive damages claim and can be readily produced. (Joint TSC Statement, ¶¶ 14, 19.) Civil Code section 3295, subdivision (c), however, permits Plaintiffs to subpoena financial documents and witnesses for trial. That statutory procedure preserves Plaintiffs' ability to present evidence of Jones's financial condition if punitive liability is established and reduces the need to reopen discovery for pretrial production. The necessity factor therefore provides only limited support for reopening. (Code Civ. Proc., § 2024.050, subd. (b)(1).)

The diligence factor weighs substantially against reopening. (Code Civ. Proc., § 2024.050, subd. (b)(2).) Plaintiffs alleged punitive damages in September 2021 but did not seek authorization under section 3295(c) until June 15, 2026, approximately four years and nine months later. During that period, the parties conducted extensive written discovery and eight depositions, litigated a summary judgment motion, and participated in mediation. (Trauben Decl. ¶¶ 6-9.) Plaintiffs explain that they did not propound financial discovery because section 3295(c) prohibited it absent a court order. (Allen Decl. ¶¶ 6-7.) That explains why the discovery itself was not propounded. It does not explain why Plaintiffs waited until June 2026 to seek the order required to conduct it.

The Joint Trial Setting Conference Statement does not account for that delay. Plaintiffs generally assert that discovery was diligently pursued and provide a discovery timeline. (Joint TSC Statement, ¶ 7, Ex. A.) They also detail their efforts to locate and schedule the depositions

of Polsky, Marzuca, and Ross-Jones. (Id., ¶¶ 10, 12.) As to Jones's financial condition, however, Plaintiffs identify only their efforts to advance the hearing after this motion was filed. (Id., ¶ 14.) Those efforts do not address why authorization under section 3295(c) was not sought earlier.

The Court previously identified the same deficiency when Plaintiffs sought ex parte relief to advance this motion or extend the discovery deadline. On July 2, 2026, the Court found that Plaintiffs had not adequately explained why the section 3295(c) motion could not reasonably have been brought earlier in light of the trial date and discovery deadlines. The Court also found that conclusory assertions of diligence were insufficient. (Trauben Decl., Ex. 5.)

The trial-calendar factor does not weigh against reopening. (Code Civ. Proc., § 2024.050, subd. (b)(3).) The September 14, 2026 trial date has been vacated, and no new trial date is set. Reopening discovery therefore would not interfere with a presently scheduled trial. The factor under subdivision (b)(4) likewise carries little weight because there is no presently set trial date to compare with the former September 14, 2026 trial date. (Code Civ. Proc., § 2024.050, subd. (b)(4).)

The age and procedural posture of the action nevertheless bear on the effect of reopening discovery on trial readiness. (Code Civ. Proc., § 2024.050, subd. (b).) This action was filed on March 16, 2021. On March 16, 2026, the Court conducted an Order to Show Cause concerning the five-year rule under Code of Civil Procedure section 583.310. The Court discharged the OSC after approving the parties' stipulation to continue trial and continued trial to September 14, 2026. (Minute Order, Mar. 16, 2026.) That trial date was later vacated. Reopening fact discovery now would extend the period before this more-than-five-year-old action can be restored to trial readiness, particularly where the financial discovery could have been sought substantially earlier.

On balance, the absence of a presently scheduled trial does not outweigh the limited need for pretrial financial discovery, Plaintiffs' unexplained delay in seeking authorization under section 3295(c), and the resulting additional delay in restoring the case to trial readiness. The request to reopen fact discovery to permit pretrial discovery of Jones's financial condition is denied.

Separately, the Court notes deficiencies in the evidentiary

materials submitted with Plaintiff's motion. Plaintiffs' memorandum states that declarations from Jourdain-Lawson and Marissa Clark were submitted in support of the motion, but neither declaration appears in the moving papers. Lawson's declaration is signed, but the date and place of execution are blank and it does not state that it was executed under the laws of the State of California. (Lawson Decl.) Allen's declaration is properly executed, but largely identifies the other evidence on which Plaintiffs rely. (Allen Decl. ¶ 4.) Thus, the declarations actually submitted with the motion do not match the affidavit showing described in Plaintiffs' memorandum.

Because the Court denies Plaintiffs' request to reopen fact discovery under Code of Civil Procedure section 2024.050, the Court does not reach whether Plaintiffs have established the substantial probability of prevailing on their punitive damages claim required by Civil Code section 3295, subdivision (c). The Court also does not reach Defendants' objections that the requested financial discovery is overbroad, improperly seeks tax returns and historical financial information, and should be limited to Jones's current financial condition and subject to appropriate confidentiality protection.

CONCLUSION

Because the Court declines to reopen fact discovery for the purpose of obtaining pretrial discovery of Jones's financial condition, Plaintiffs' Motion for Pre-Trial Discovery of Defendant's Financial Condition Pursuant to Civil Code Section 3295(c) is DENIED.

The parties' remaining requests concerning reopening or completion of fact and expert discovery are addressed separately at the Trial Setting Conference.